

General Knowledge

Indian Polity

STUDY NOTES

Elections



ELECTIONS IN INDIA



Introduction

Electoral System in India

The **Indian Constitution** provides a framework for the electoral system to ensure free and fair elections. Key provisions include:

1. **Election Commission of India (Article 324):**

- The Constitution establishes an **independent Election Commission** with the power to supervise, direct, and conduct elections for Parliament, state legislatures, the President, and the Vice President.
- Currently, the commission consists of a **Chief Election Commissioner** and **two Election Commissioners**.

2. **General Electoral Roll:**

- There is a **single general electoral roll** for every territorial constituency for elections to Parliament and state legislatures.
- This system abolished separate electorates based on **communal representation**, which contributed to national unity after independence.

3. **Non-Discrimination in Electoral Rolls:**

- No person can be excluded from the electoral roll based solely on **religion, race, caste, or sex**.
- All citizens have equal rights in the electoral franchise, promoting inclusivity in voting rights.

4. **Universal Adult Franchise:**

- Elections to the **Lok Sabha** and **state assemblies** are based on **universal adult franchise**.
- Every Indian citizen aged **18 years or older** has the right to vote, barring disqualifications related to **non-residence, mental unsoundness, crime, or corrupt practices**.

5. **Parliament's Role in Election Matters:**

- Parliament has authority over all matters concerning elections to both Parliament and state legislatures, such as **electoral roll preparation, delimitation of constituencies**, and other related aspects to ensure lawful elections.

6. **Role of State Legislatures:**

- State legislatures may legislate on matters related to **state elections** that are not covered by Parliament's laws.
- However, state laws must align with and supplement parliamentary laws rather than override them.

7. **Finality of Delimitation Orders:**

- Laws relating to the **delimitation of constituencies** and **seat allotment** cannot be questioned in court.
- This provision gives final authority to the Delimitation Commission, whose decisions are conclusive and binding.

8. **Election Disputes:**

- Election disputes can only be contested through **election petitions** as specified by Parliament or state legislatures.
- Since **1966**, only **high courts** handle election petitions, with the **Supreme Court** holding appellate jurisdiction.

Special Provision: Tribunal for Election Disputes (Article 323B)

- **Article 323B** allows Parliament or state legislatures to set up a **tribunal** to handle election disputes, excluding the jurisdiction of other courts except for appeals to the Supreme Court.
- Notably, the **Supreme Court** declared this provision unconstitutional in the **Chandra Kumar case (1997)**, which means that any tribunal established would be subject to **high court review**.

Article	Subject Related to the Article
324	Superintendence, direction, and control of elections to be vested in an Election Commission
325	No person to be ineligible for inclusion in, or to claim to be included in a special electoral roll on grounds of religion, race, caste, or sex
326	Elections to the House of the People and to the Legislative Assemblies of States to be based on adult suffrage
327	Power of Parliament to make provisions concerning elections to Legislatures
328	Power of the Legislature of a state to make provisions concerning elections to such Legislature
329	Bar to interference by courts in electoral matters
329A	Special provision as to elections to Parliament in the case of Prime Minister and Speaker (Repealed)

Election Machinery

Election Commission of India (ECI)

- Under **Article 324** of the Indian Constitution, the **Election Commission of India** is vested with the powers of **superintendence, direction, and control** over the conduct of elections to the **Lok Sabha** and **State Legislative Assemblies**.
- The **Election Commission** is a **three-member body**, consisting of a **Chief Election Commissioner** and two **Election Commissioners**.
- The **President of India** appoints the Chief Election Commissioner and the Election Commissioners.

Chief Electoral Officer (CEO)

- The **Chief Electoral Officer** of a state or Union Territory is responsible for supervising election activities within the state or Union Territory.

- Appointed by the **Election Commission of India** in consultation with the respective state government or Union Territory administration.

District Election Officer (DEO)

- The **District Election Officer** oversees election work within a district, under the guidance of the **Chief Electoral Officer**.
- Designated by the **Election Commission of India**, in consultation with the state government.

Returning Officer (RO)

- The **Returning Officer** is responsible for managing the conduct of elections in a **Parliamentary or Assembly constituency**.
- Appointed by the Election Commission in consultation with the State Government or Union Territory administration.
- Additionally, the **Election Commission** may appoint **Assistant Returning Officers** to assist the Returning Officer.

Electoral Registration Officer (ERO)

- The **Electoral Registration Officer** is responsible for the **preparation of electoral rolls** for a Parliamentary or Assembly constituency.
- Appointed by the **Election Commission of India**, in consultation with the state or Union Territory government.
- **Assistant Electoral Registration Officers** are also designated to aid in the preparation and revision of electoral rolls.

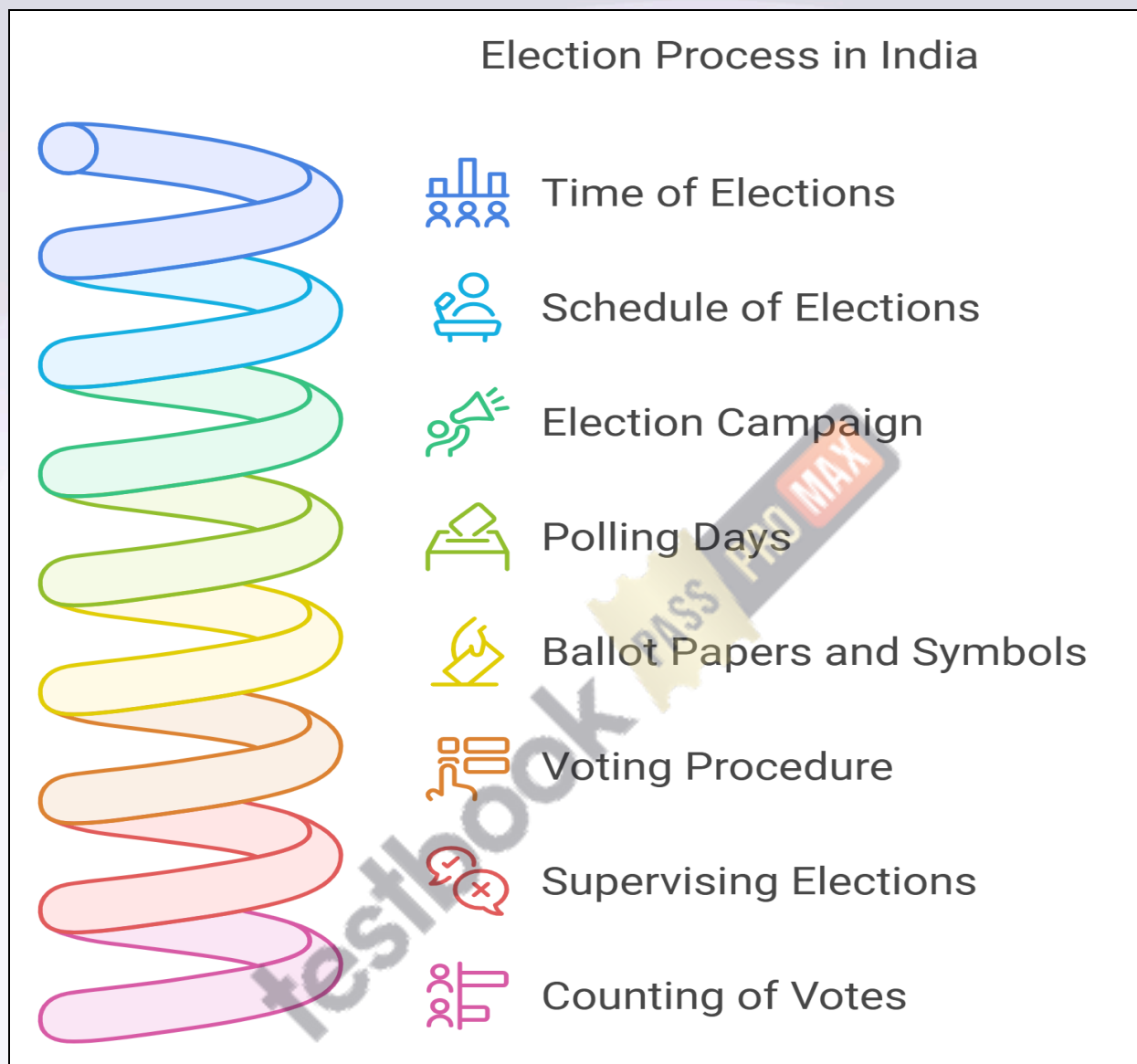
Presiding Officer

- The **Presiding Officer**, along with polling officers, is tasked with conducting the **poll at a polling station**.
- Appointed by the **District Election Officer**; in Union Territories, this responsibility falls to the **Returning Officer**.

Time of Elections

- **Lok Sabha** and **State Legislative Assembly** elections are generally held every five years.
- The **President of India** has the authority to dissolve the Lok Sabha and call for a **General Election** if the government loses the confidence of the Lok Sabha and no alternative government can be formed.

Election Process



Schedule of Elections

- Upon the end of the five-year term or dissolution of the legislature, the **Election Commission** initiates the election process.
- The Constitution mandates that elections must be held within **six months** after the dissolution of the Lok Sabha.
- The **Election Commission** announces the election schedule, and the **Model Code of Conduct** is activated to ensure a fair campaign environment.
- The formal election process begins with the **Notification** calling for members' election, after which candidates can submit their **nominations**.

Election Campaign

- Political parties and candidates conduct campaigns to convince voters.
- The campaign is regulated by the **Model Code of Conduct**, which promotes fair play and ensures that ruling parties do not misuse their official positions.
- Candidates must submit **nominations** and can withdraw their names within two days post-nomination scrutiny.
- Campaigning typically lasts at least two weeks, ending 48 hours before the polling day.

Polling Days

- Polling is held over multiple days across various constituencies to allow proper security and fair voting practices.

Ballot Papers and Symbols

- The **Returning Officer** issues a list of candidates and prints **ballot papers** showing candidates' names and symbols. Recognized political parties are given their respective party symbols.

Voting Procedure

- **Voting** is by **secret ballot** at polling stations, often within two kilometers of voters, with no more than 1,500 voters per station.
- The Election Commission encourages use of **Electronic Voting Machines (EVMs)** for faster, eco-friendly, and error-free voting.

Electronic Voting Machine (EVM)

- EVMs are electronic devices used to cast votes. Benefits include:
 1. Prevention of invalid or doubtful votes.
 2. Faster vote counting.
 3. Reduced paper usage, promoting eco-friendliness.
 4. Minimal printing costs.



Supervising Elections

- The Election Commission appoints **Observers** to monitor election fairness and expenditure compliance.

Counting of Votes

- Votes are counted under the **Returning Officers'** supervision.

- The **first-past-the-post** system is used, where the candidate with the most votes wins the seat.

Media Coverage

- The media are granted access to polling stations and counting centers to ensure transparency, although they must maintain the secrecy of the vote.

Election Petitions

- **Election petitions** can be filed by any candidate or elector alleging malpractice. Petitions are handled by the **High Court** and may result in re-election in the concerned constituency if upheld.

Election Laws

REPRESENTATION OF THE PEOPLE ACT, 1950

- Provides for the allocation of seats in the **House of the People (Lok Sabha)**, **State Legislative Assemblies**, and **Legislative Councils**.
- Articles **81** and **170** of the Constitution specify the maximum number of seats and principles for seat allocation among states for the **Lok Sabha** and **State Assemblies**.
- **Article 171** outlines the seat range and methods for filling seats in State Legislative Councils, with specific numbers determined by this Act.
- Empowers the **President**, after consultation with the **Election Commission**, to **delimit** constituencies for the **Lok Sabha**, **State Legislative Assemblies**, and **Legislative Councils**.
- Specifies roles such as **Chief Electoral Officers**, **District Election Officers**, and **Electoral Registration Officers** for the smooth conduct of elections.
- Governs the creation and maintenance of **electoral rolls** for **Parliamentary**, **Assembly**, and **Council Constituencies**.
- Defines the process for filling **Council of States (Rajya Sabha)** seats allocated to **Union Territories**.
- Designates **local authorities** for elections to the **State Legislative Councils**.
- Bars **civil courts** from intervening in election matters covered by the Act.

REPRESENTATION OF THE PEOPLE ACT, 1951

The **Representation of the People Act, of 1951** supplements the 1950 Act by including essential provisions for the actual conduct of elections, qualifications and disqualifications for membership, election offenses, and the adjudication of election disputes.

Key provisions of the Act cover:

1. **Qualifications and disqualifications** for Parliament and State Legislature membership.

2. **Notification** of general elections.
3. **Administrative machinery** to ensure proper conduct of elections.
4. **Registration** of political parties.
5. **Conduct of elections**, detailing all processes from nominations to polling.
6. **Free supply of certain materials** to candidates of recognized parties.
7. **Disputes regarding elections**, are handled by specified authorities.
8. Definition of **corrupt practices and electoral offenses**.
9. **Election Commission powers** related to inquiries about disqualifications.
10. Provisions for **bye-elections** and timelines for filling vacancies.
11. **Miscellaneous election-related provisions**.
12. **Exclusion of civil court jurisdiction** in election matters.

Conduct of elections includes:

- **Nomination** of candidates and the role of their agents.
- **General procedures** at elections, **polling**, and **counting of votes**.
- Handling of **multiple elections**, **publication of results**, and **declaration of assets and liabilities**.
- Regulations on **election expenses**.

Provisions related to election disputes include:

- **Presentation of election petitions** to the High Court.
- **Trial, withdrawal, and abatement** of election petitions.
- **Appeals to the Supreme Court**.
- **Costs and security requirements** for filing petitions.

DELIMITATION ACT, 2002

- **Articles 82 and 170** of the Indian Constitution mandate the **readjustment and division of states into constituencies** (both Parliamentary and Assembly) based on the **2001 census**, with the process and authority defined by parliamentary law.
- **Articles 330 and 332** require re-fixing the **reserved seats for Scheduled Castes and Scheduled Tribes** in the House of the People and State Legislative Assemblies, also based on the **2001 census**.
- The current delimitation of constituencies is based on the **1971 census**, leading to disparities in constituency sizes due to population changes and migration, particularly from **rural to urban areas**.

- To address these issues, the **Delimitation Act, of 2002** was enacted, establishing a **Delimitation Commission** to redraw constituency boundaries based on the **2001 census**. This process aims to balance constituency sizes and ensure fair representation.
- The Commission is also tasked with **re-fixing the reserved seats for SCs and STs** based on the 2001 census, without changing the total number of seats set by the 1971 census.
- The **Delimitation Act, of 2002** provides guidelines for conducting the delimitation, with a deadline for the Commission to complete its work by **July 31, 2008**.
- The revised delimitation applies to every general election to the House of the People or State Legislative Assemblies **after the final orders of the Commission are published**, as well as to **bye-elections** arising thereafter.

Electoral Reforms

Electoral Reforms Before 1996

- **Lowering of Voting Age**
 - The **61st Constitutional Amendment Act of 1988** reduced the voting age from 21 to 18 for Lok Sabha and Assembly elections, enabling greater youth participation.
- **Deputation to Election Commission**
 - In 1988, a provision allowed officers and staff involved in electoral roll preparation to be on deputation to the **Election Commission**, placing them under its authority during election periods.
- **Increase in Number of Proposers**
 - To prevent frivolous nominations, the required number of proposers for **Rajya Sabha** and **State Legislative Council** elections was raised to 10% of constituency electors or 10 electors, whichever is lower.
- **Electronic Voting Machines (EVMs)**
 - Introduced in **1989**, EVMs were first used in **1998** and widely adopted in **1999** for the Assembly elections in Goa.
- **Booth Capturing**
 - A 1989 amendment enabled adjournment or countermanding of elections in cases of **booth capturing** through force or threats.
- **Elector's Photo Identity Card (EPIC)**
 - In **1993**, the Election Commission introduced **photo identity cards** to prevent impersonation and fraudulent voting, based on annually updated electoral rolls.

Electoral Reforms of 1996

- **Listing of Candidates**

- Candidates are categorized as **recognized party candidates**, **registered-unrecognized party candidates**, and **independent candidates**; their names appear on ballots in this order.
- **Disqualification under Insult to National Honour Act**
 - Convictions for offenses under the **Prevention of Insults to National Honour Act, 1971** (against the National Flag, Constitution, or National Anthem) lead to six-year disqualification.
- **Prohibition on Sale of Liquor**
 - Sale and distribution of liquor within polling areas is prohibited **48 hours before the poll ends**, with violations punishable by up to six months' imprisonment or a fine of ₹2,000.
- **Number of Proposers**
 - Non-recognized party candidates require 10 proposers, while recognized party candidates need only one, to deter non-serious candidates.
- **Death of a Candidate**
 - Elections are no longer countermanded due to a candidate's death. If the deceased candidate belonged to a recognized party, the party may nominate a replacement within **seven days**.
- **Time Limit for By-Elections**
 - By-elections must be held within **six months** of a vacancy unless the remaining term is under a year or the circumstances make elections infeasible.
- **Holiday for Employees on Polling Day**
 - Voters are entitled to a paid holiday on polling day. Employers violating this rule face a fine of up to ₹500.
- **Restriction on Contesting from Multiple Constituencies**
 - Candidates may contest from **no more than two constituencies** in general or by-elections, including biennial Rajya Sabha elections.
- **Prohibition of Arms**
 - Entering polling areas with arms is a punishable offense with up to two years' imprisonment, and any seized arms are confiscated with licenses canceled.
- **Reduced Campaigning Period**
 - The interval between the last date of candidature withdrawal and polling was reduced from **20 to 14 days**.

Electoral Reforms After 1996

- **Presidential and Vice Presidential Elections**

- In **1997**, proposer and seconder requirements for presidential and vice-presidential candidates were increased to deter frivolous nominations.
- **Requisitioning of Staff for Election Duty**
 - In **1998**, employees from nationalized banks, universities, and government-aided institutions were allowed to be recruited for election duties.
- **Voting through Postal Ballot**
 - Introduced in **1999** to allow certain classes of voters to cast votes via **postal ballot**.
- **Proxy Voting for Armed Forces**
 - In **2003**, armed forces members gained the option of **proxy voting**.
- **Declaration of Criminal, Financial, and Educational Backgrounds**
 - Candidates must disclose criminal records, assets, liabilities, and education qualifications. False declarations are punishable by up to **six months' imprisonment**.
- **Changes in Rajya Sabha Elections**
 - Residency requirements were removed, and an **open ballot system** was introduced to prevent cross-voting.
- **Exemption of Travel Expenditure**
 - Travel expenses of party leaders are exempt from candidates' election expense limits.
- **Free Supply of Electoral Rolls**
 - Recognized party candidates receive free copies of electoral rolls and other materials for **Lok Sabha and Assembly elections**.
- **Acceptance of Contributions**
 - Political parties may accept contributions, with donations above ₹20,000 reported to claim income tax relief.
- **Equitable Media Access**
 - During elections, electronic media access is allocated equitably among recognized political parties.
- **Braille Features in EVMs**
 - EVMs with **Braille signage** were gradually introduced, fully implemented by the **2009 Lok Sabha elections**.

Electoral Reforms Since 2010

- **Restrictions on Exit Polls**
 - Since **2009**, conducting and publishing exit polls is prohibited during elections.
- **Disqualification Time-Limit**
 - A three-month limit was introduced for processing disqualification cases related to corrupt practices.
- **Inclusion of All Officials in Corrupt Practice Definition**
 - All officials on election duty are subject to the same **corrupt practices rules** as government officials.
- **Increase in Security Deposit**
 - Deposits for Lok Sabha and Assembly candidates were increased to deter non-serious candidates.
- **District-Level Appellate Authority**
 - Appeals against electoral roll updates now go to district-level authorities rather than the Chief Electoral Officer.
- **Voting Rights for Non-Resident Indians (NRIs)**
 - Since **2010**, NRIs who haven't acquired foreign citizenship may vote in their home constituency.
- **Online Voter Registration**
 - In **2013**, online registration for electoral rolls was introduced.
- **NOTA Option**
 - Introduced in **2013** to allow voters to select "None of the Above" (NOTA) on ballots.
- **Voter Verifiable Paper Audit Trail (VVPAT)**
 - **VVPATs** were introduced in **2013** to verify votes and were fully implemented by the **2014 Lok Sabha elections**.
- **Right to Contest for Prisoners**
 - In **2013**, prisoners retained the right to contest elections even if denied the right to vote.
- **Immediate Disqualification of Convicted MPs and MLAs**
 - Convicted MPs and MLAs are disqualified immediately upon conviction, as per a 2013 Supreme Court ruling.